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FEDERAL ANTI-INDIAN LAW: WHY A CHALLENGE TO "CHRISTIAN DISCOVERY" CREATES A METAPHYSICAL CRISIS FOR THE US

Abstract

The legal doctrine of "Christian Discovery" remains the foundation of United States federal anti-Indian law, yet it is rarely challenged directly in litigation. This essay argues that confronting the doctrine poses not merely a legal challenge but a metaphysical crisis for the United States itself. Through close analysis of the nineteenth-century "Marshall Trilogy"—*Johnson v. McIntosh*, *Cherokee Nation v. Georgia*, and *Worcester v. Georgia*—the essay demonstrates that federal Indian law is grounded in an explicit claim of Christian European land appropriation and a corresponding denial of Indigenous sovereignty.

The essay critiques common misreadings of these cases that treat dicta about Native "occupancy," "guardianship," or "trust" as affirmations of Indigenous rights. Instead, it shows how such language functions rhetorically to obscure the doctrine's central purpose: legitimizing U.S. ownership of Indigenous lands and plenary power over Indigenous peoples. Situating Christian Discovery within a broader jurisprudential framework, the essay argues that land appropriation is the primeval legal act from which U.S. property law, sovereignty, and territorial authority derive.

By comparing *Brown v. Board of Education* with *Tee-Hit-Ton v. United States*, the essay highlights how the Court embraced racial equality while reaffirming colonial domination. It concludes by urging litigators to directly challenge Christian Discovery, arguing that avoidance perpetuates a system of domination sustained by legal formalism and reformist rhetoric.

Keywords: Indigenous peoples, Indigenous Sovereignty, colonization, colonial domination, racial equality, anti-indian law, legal formalism, Christian Discovery, U.S property law, territorial authority, and Indigenous rights.

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Discussions about the infamous legal doctrine of "Christian Discovery" almost always provoke the question, "What can we do?" The question may be a hopeful request for tactics and strategy for change. Or it may be a world-weary expression of cynicism about the very possibility of change.

The situation reminds me of the environment in which Thurgood Marshall initiated his challenge to "separate but equal" racial segregation doctrine that eventually led to its overruling in 1954 in *Brown v. Board of Education*.[1] One of Marshall's tasks was to coordinate tactics among sometimes over-eager allies; not every case was equally suitable for a challenge. Success came from coordinated, close planning. Marshall also had to respond to skeptics who said he was on a fool's errand, that segregation was "just the way it is, and we can work with it"; they told Marshall not to rock the boat. But he did. He gathered critiques of legalized race domination, litigated, and overcame it.

Today, "Christian Discovery" doctrine is criticized in many law reviews and books, but in almost no litigation. One of my aims in this essay is to sharpen the criticism by focusing on the doctrinal foundations, especially to correct misreadings that interfere with tactics and strategy for overruling the doctrine. Another aim is to encourage more critique in litigation.

Lawyers are rightly cautious about challenging entrenched doctrine, because they can be sanctioned under civil procedure rules for making "frivolous" arguments.

Black's Law Dictionary defines a "frivolous" lawsuit as one that is "groundless . . . with little prospect of success; often brought to embarrass or annoy the defendant."[2] Surely a challenge to Christian Discovery doctrine will "embarrass or annoy" the United States, but annoyance is not the purpose of the lawsuit that we can imagine. The purpose is to free Indigenous Peoples from the dominating grip of fifteenth-century imperial colonial religious concepts entrenched in federal anti-Indian law.

In fact, there is actually room for challenge, because the Rules of Civil Procedure also say that arguments for "reversals of existing law or for creation of new law" are not "frivolous" if the litigant "has researched the issues and found some support for its theories even in minority opinions, in law review articles, or through consultation with other attorneys." Arguments specifically identified as calling for a change in the law are "viewed with greater tolerance."[3]

Given the leeway in the Rules and increasingly widespread critical commentary to support an argument for legal change, there is no excuse for the avoidance of challenge in court cases—no room for "it's just the way it is, so work with it."

Foundation: The "Marshall Trilogy": Land Appropriation

Whoever is ready to rock the boat of US anti-Indian law by challenging its foundations will need to assess the entire terrain to understand what they're up against in order to craft tactics and strategy. The terrain includes most especially the "Marshall trilogy" of early nineteenth

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[1] Brown v. Board of Education of Topeka, 347 U.S. 483 (1954).

[2] Black's Law Dictionary, 7th ed. 1999.

[3] *Fed. R. Civ. P.* 11, Advisory Committee Notes, 1993 Amendment.

century US Supreme Court decisions: *Johnson v. McIntosh*,[4] *Cherokee Nation v. Georgia*,[5] and *Worcester v. Georgia*.[6] This trilogy is the foundation of federal anti-Indian law, and the cases continue to be actively cited today.

As mentioned above, there are many critiques of the doctrine that get the doctrinal foundation wrong:

Johnson, for example, the urtext, is often cited as an affirmation of Native rights by commentators who pick out a favorable sounding phrase about Native rights from the middle of a paragraph wholly affirming Christian Discovery.

Cherokee Nation has given birth to a whole factory of legal brief writing relying on a metaphor about US "guardianship" of Native Peoples despite that metaphor being a statement of federal power growing out of the claim of US ownership of Native lands.

Worcester, the final case in the trilogy, is very frequently misread as showing that John Marshall "changed his mind" about Christian Discovery by asking a question about its "rightness," when in fact he immediately answered that question by reaffirming the doctrine.

If you intend to rock the boat, you'd better understand the boat, so let's take a close but succinct look at what John Marshall actually decided in building it.

As we will see, the foundation cases of federal anti-Indian law are an outright appropriation of Original Peoples' lands and a claim of "ultimate" power over the Peoples themselves. The rhetorical flourishes are distractions designed like new clothes for the emperor.

1823 – *Johnson v. McIntosh*, the cornerstone of "federal Indian law," adopted Christian Discovery into US property law in an opinion by Chief Justice John Marshall. Marshall asserted a claim of "exclusive title" to the entire continent on behalf of the United States, on the grounds that the English colonists were the first Christians to "discover" the continent. Marshall repeatedly stressed the Christian basis of the property doctrine that he was creating. This is often overlooked by commentators who read the opinion through "race discrimination" lenses. In fact, the word "savage" appears only once in *Johnson*, while "heathen" appears twice and "Christian" (or "Christianity") seven times!

Johnson established the foundation of all property law in the US. "Ownership" of the continent gave the US sole authority as "sovereign" to make land available to others through contract or grant. This, after all, was the precise question in the case: whether the Piankeshaw Nation could engage in land transactions on its own lands. Johnson said no: The Piankeshaw did not own those lands; their "discoverer" did.

The Johnson property law decision simultaneously created "federal Indian law" by "diminishing" Original Peoples to "occupants" rather than "owners" of their lands. The "occupancy right" was deceptively called "Indian title." This is where frequent misreading occurs, as wishful thinkers try to extract a silver lining from the "diminishment." They point to a phrase in the opinion that says, "…the original inhabitants were… admitted to be the rightful occupants of the soil, with a legal as well as just claim to retain possession of it….

But that phrase is embedded in a paragraph that leaves no doubt about Christian Discovery domination. It says:

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[4] *Johnson v. McIntosh*, 21 U.S. 543 (1823).

[5] Cherokee Nation v. Georgia, 30 U.S. 1 (1831).

[6] *Worester v. Georgia*, 31 U.S. 515 (1832).

> "In the establishment of these relations [between the discoverer and the natives], the rights of the original inhabitants were, in no instance, entirely disregarded; but were necessarily, to a considerable extent, impaired. They were admitted to be the rightful occupants of the soil, with a legal as well as just claim to retain possession of it, and to use it according to their own discretion; but their rights to complete sovereignty, as independent nations, were necessarily diminished, and their power to dispose of the soil at their own will, to whomsoever they pleased, was denied by the original fundamental principle, that discovery gave exclusive title to those who made it."[7]

Justice Joseph Story later explained, "The title of the Indians was not treated as a right of propriety and dominion; but as a mere right of occupancy. As infidels, heathen, and savages, . . . [they] were not allowed to possess the prerogatives belonging to absolute, sovereign and independent nations." Story concluded with the extraordinary statement that Native "territory . . . was, in respect to Christians, deemed, as if it were inhabited only by brute animals."[8]

So much for a silver lining.

1831 - *Cherokee Nation v. Georgia* built on *Johnson* to emphasize that the Cherokee and all other Original Peoples were not independent sovereign nations. The reason, Marshall said, was because "They occupy a territory to which we assert a title independent of their will…."[9] In short, "Christian Discovery."

Marshall added two intertwined metaphors as *dicta*—statements in an opinion extraneous to the decision: "The Indians…may more correctly, perhaps, be denominated domestic dependent nations…. Their relations to the United States resemble that of a ward to his guardian." Marshall said that the "dependent" status meant that "The Indians… look to our Government for protection, rely upon its kindness and its power, appeal to it for relief to their wants…."[10]

It is a marker of the strangeness of federal anti-Indian law that Marshall's hesitant metaphors—"may, perhaps," "resemble"—became essential terms of art in federal anti-Indian law, collapsed today into the single phrase "trust relationship." Arguments based on Marshall's metaphors unfortunately consume most of the oxygen in legal arguments about Native rights, to the exclusion of challenges to the fundamental property doctrine that was the real basis of the *Cherokee Nation* decision.

Ironically, what the Cherokee asked for in the case and didn't get was for the US to uphold its Treaty agreement to guard the Cherokee against aggression! The reality of the court's decision far outweighed Marshall's metaphors.

The metaphorical "trust" is often called a "special trust" because it has nothing in common with a trust as defined in ordinary law. The court explained the difference in a 2011 case, *United States v. Jicarilla Apache Nation* (quoting from precedents):

> "The relationship between the United States and the Indian tribes is distinctive, 'different from that existing between individuals whether dealing at arm's length, *as trustees and beneficiaries*, or otherwise.'…. 'The *general* relationship between the United States and the Indian tribes is not comparable to a private trust relationship.'

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[7] *Johnson v. McIntosh*, 21 U.S. at 543, 574 (1823).

[8] Joseph Story, *Commentaries on the Constitution of the United States*, vol. I, bk. I, chap. XVI, "General Review of the Colonies," § 153, 101–102.

[9] *Cherokee Nation v. Georgia*, 30 U.S. at 1 (1831).

[10] *Cherokee Nation v. Georgia*, 30 U.S. at 1 (1831).

> "Congress may style its relations with the Indians a 'trust' without assuming all the fiduciary duties of a private trustee, creating a trust relationship that is 'limited' or 'bare' compared to a trust relationship between private parties at common law." [11]

The court admitted that the "trust doctrine" in federal anti-Indian law is based on the claim of US "sovereignty" over Native Nations—the Christian Discovery claim:

> "The difference between a private common-law trust and the statutory Indian trust follows from the unique position of the Government as sovereign. …
>
> "Throughout the history of the Indian trust relationship, we have recognized that the organization and management of the trust is a sovereign function subject to the plenary authority of Congress. … The Government has often structured the trust relationship to pursue its own policy goals."

The bottom line of *Cherokee Nation* and its progeny: the "trust doctrine" is untrustworthy.

1832 – *Worcester v. Georgia*, the final case in the trilogy, followed on the heels of *Cherokee Nation*. The rhetoric of the decision confuses many readers because Marshall seemed to question the doctrine, saying, "It is difficult to comprehend the proposition… that…discovery…should give the discoverer rights in the country discovered which annulled the preexisting rights of its ancient possessors."[12]

But Marshall answered the question with an explicit reaffirmation of Christian Discovery:" But power, war, conquest, give rights, which, after possession, are conceded by the world; and which can never be controverted by those on whom they descend. We proceed, then, to the actual state of things…[which] was, that discovery gave title to the government by whose subjects or by whose authority it was made…."[13]

Justice John McLean's concurring opinion underscored the Christian Discovery basis of the decision: "At no time has the sovereignty of the country been recognized as existing in the Indians…. Their right of occupancy has never been questioned, but the fee in the soil has been considered in the government."[14]

The most famous sentence in *Worcester* confusing readers who praise Marshall's ruling as a "victory" for the Cherokee, is the following:

> "The Cherokee Nation . . . is a distinct community occupying its own territory . . . in which the laws of Georgia can have no force, and which the citizens of Georgia have no right to enter but with the assent of the Cherokees themselves, or in conformity with treaties and with acts of Congress."[15]

Wishful readers love the opening phrases. But the crucial words of US power follow the conjunction "and": The sentence says Georgia has no right to enter Cherokee territory except by Cherokee assent or by treaty *and* acts of Congress. Marshall was not relinquishing the claim of overriding U.S. power.

This example shows that it is not enough to read cases like a story; as S. F. C. Milsom explained, one needs to take a mathematics or scientific approach, reading slowly, "thinking

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[11] *United States v. Jicarilla Apache Nation, 564 U.S. 162, 173-75 (2011) (emphasis in original).*

[12] 31 U.S. at 543.

[13] 31 U.S at 543.

[14] 31 U.S. at 580.

[15] 31 U.S. at 561.

each sentence through in relation to the last and then again in relation to the next."[16] Read in this way, Marshall's "and" functions like a Boolean operator determining the logic of the decision. *Worcester* can be described as a "victory" for the Cherokee only in the limited sense that it protected them from Georgia. In 2022, the Supreme Court said that even this little victory—that "Indian country [is] separate from state territory"—"has long since been abandoned."[17]

Ironically, and contrary to notions that Marshall had second thoughts about Christian Discovery in *Worcester*, his declaration of exclusive federal power to deal with Indigenous Peoples accomplished only one sure thing—it erected a scaffold for the claim that Congress has "plenary power" over Indigenous Peoples and lands.

Marshall in fact praised one congressional exercise of power, the 1819 *Civilization Act*, saying it promoted "those humane designs of civilizing the … Indians which had long been cherished by the Executive."[18] He never mentioned the 1830 *Indian Removal Act*, the inhumane and genocidal congressional policy enacted the year before *Worcester* and also celebrated by the executive.

Land Appropriation: The Primeval Legal Act

Before we move on, I want to acknowledge that the deceptive and bizarre notions of "trust relationship," "domestic dependent nation," and "plenary power" can sometimes support "pro-Indian" rulings against states and local governments. Litigators can win Indigenous fishing and hunting cases by courts blocking state action on the ground that only the United States with its "ultimate domain" can interfere with Indigenous rights. That is the basis for the caution not to "rock the boat."

Nonetheless, we need to understand that reluctance to challenge the doctrine of Christian Discovery involves much more than practical questions of litigation.

In 1925, German legal theorist Carl Schmitt wrote, "An abyss separates us from the time when international law textbooks still spoke of Christian international law, and the rights of Christian nations."[19] Schmitt obviously wasn't aware of US anti-Indian law that still stands on the far side of the abyss.

In 1950, Schmitt explored what he called "the nomos of the earth," a theoretical work on the origin of the Eurocentric global order, which Schmitt dated from the "discovery of the New World" when the Christian powers embarked on mutually recognized appropriations of the globe.

Schmitt saw "land appropriation" as the foundation of all law. He wrote:

- "Every . . . ontological judgement derives from the land. . . . Land-appropriation [is] the primeval act in founding law….

[16] Stroud Francis Charles Milsom, *A Natural History of the Common Law*, James S. Carpentier Lectures, xxxi (New York: Columbia University Press, 2003).

[17] *Oklahoma v. Castro-Huerta*, 597 U.S. 629 (2022).

[18] *Worcester v. Georgia*, 31 U.S. 515, 557 (1832).

[19] G.L. Ulmen, "Translator's Introduction," in Carl Schmitt & G.L. Ulmen, *The Nomos of the Earth in the International Law of the Jus Publicum Europaeum*, 13 (New York: Telos Press, 2003). (Quoting Carl Schmitt, *Das Rheinland als Objekt internationaler Politik* (1925), in Carl Schmitt, *Positionen und Begriffe im Kampf mit Weimar-Genf-Versailles*, 1923–1939, 27 (2nd ed. Berlin: Duncker & Humblot, 1988)).

- "[Land appropriation] constitutes…the source of all further concrete order and all further law….
- "[Land appropriation is] the reproductive root in…all further property relations….
- "All subsequent law and everything promulgated and enacted thereafter as decrees and commands [are derived from a claim of] radical title to land."[20]

These assertions are startling, to say the least. They mean that the land appropriation doctrine of "Christian Discovery" is not simply the basis of "federal Indian law," it is the source of all further US law!

The implications are staggering. Not only are all property titles rooted in this original appropriation, but the entire edifice of a domination system called the US, encompassing concepts of "federal supremacy," "public land," "sovereignty," and "eminent domain" are at stake. Logically and historically, federal anti-Indian law carries significance far beyond relations of the United States to Native Peoples. A challenge to Christian Discovery and US appropriation of Native lands amounts to a metaphysical crisis for America. The US claim of sovereignty is the mirror of the non-recognition of Original Peoples' sovereignty.

This was indeed the premise of the "civilization" agenda carried out by "non-governmental organizations" of the day—churches and "Friends of the Indian." Their aim was to secure US sovereignty and avoid a metaphysical crisis by destroying Native societies.

The "civilization" agenda was a "white man's burden" antedating Rudyard Kipling's infamous 1899 hymn[21] to US imperialism in the Philippines. Kipling's "new-caught sullen peoples / half devil and half child" mirrored the vision of "Indian reformers" expressed most dramatically by Henry Pratt's "kill the Indian and save the man" mantra for the "boarding school" prison reformatories. But Pratt was not alone; he was aided and abetted by missionaries and bureaucrats on all sides, as the following examples show:

Merrill E. Gates, President of Amherst College and President of the Lake Mohonk Conference of Friends of the Indian, addressed the Seventeenth Annual Meeting (1889)[22] as follows:

> "I attended the sessions of the …Institute for Teachers in the Indian schools…. Between three and four hundred teachers, agents and employees in the Indian service attended….
>
> "The resolutions passed by this body of teachers… were noteworthy for …the emphasis placed upon the need of enforced school attendance for all children, and the wisdom and the duty of sending away from the tribe to the non-reservation school all healthy children whose attainments are such as to lead their teachers to recommend it.
>
> "It is evident that pressure will often be needed to bring this about, and the resolutions were specific as to the duty of the Government to enforce attendance where parents oppose the education and civilization of their children."

The resolutions that especially pleased Gates were:

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[20] Carl Schmitt & G.L. Ulmen, *The Nomos of the Earth in the International Law of the Jus Publicum Europaeum*, 45 (New York: Telos Press, 2003).

[21] Rudyard Kipling, *The White Man's Burden: The United States & The Philippine Islands, 1899*, in *Rudyard Kipling's Verse: Definitive Edition* (Garden City, New York: Doubleday, 1929).

[22] *Proceedings of the Seventeenth Annual Meeting of the Lake Mohonk Conference of Friends of the Indian*, 57-58 (New York: Lake Mohonk Conference, 1899).

> "*Resolved*, That the true object of Indian schools and of the management of Indian affairs is to accomplish the release of the individual Indian from the slavery of tribal life, and to establish him in the self-supporting freedom of citizenship and a home in the life of the nation; and that whatever in our present system hinders the attainment of this object should be changed.
>
> "*Resolved*, That every Indian child over thirteen years old whose physical condition is pronounced by the agency physician to be such as to warrant it, and whose progress and promise are such as to lead the superintendent of the nearest reservation school or the supervisor of schools, or both of them, to recommend it, should be sent to a non-reservation school; and no such child who shall wish to go should be kept back under the degrading influence of tribal life because parents may refuse their consent."

At the Nineteenth Annual Meeting (1901), then-Major Pratt praised the land "allotment" process that rested on the US claim to hold title to all Native lands and have plenary power over Native Peoples. His words show how the "reformers" took the legal ball and ran with it:

> "Now, I have always believed that when lands are allotted to Indians —as they are to become citizens of the United States—there should be alternate allotments, one quarter section to an Indian and the next one to a white man. Distributing the land in this way there would be destruction of tribalism and the taking on of citizenship at once. The white man would improve and make the highest possible use of his land, and the Indian, surrounded on all sides by industrious example, would become ashamed of himself and his worthlessness, and would first imitate and then rival the white man."[23]

William A. Jones, Commissioner of Indian Affairs, also addressed the Nineteenth Meeting, applauding "boarding school" domination:

> "There are in operation at the present time one hundred and thirteen boarding schools, with an average attendance of something over sixteen thousand pupils, ranging from five to twenty-one years old. These pupils are gathered from the cabin, the wickiup and the tepee.
>
> "Partly by cajolery and partly by threats, partly by bribery and partly by fraud, partly by persuasion and partly by force, they are induced to leave their homes and their kindred, to enter these schools and take upon themselves the outward semblance of civilized life.
>
> "They are chosen, not on account of any particular merit of their own, not by reason of mental fitness, but solely because they have Indian blood in their veins."[24]

The momentum of domination was already strongly expressed at the Tenth Annual Meeting (1892), where Lieutenant W. W. Wotherspoon was asked to give an account of the Apache prisoners at Mount Vernon in Alabama. He said:

> "All the Indian dances have been stopped, in order that the children who are going to school may grow up without the traditional influences of the savage dances."[25]

As a final example, here are remarks at the Third Annual Meeting (1885) by Senator Henry M. Dawes, of Massachusetts, architect of the General Allotment Act ("Dawes Act"):

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[23] *Proceedings of the Nineteenth Annual Meeting of the Lake Mohonk Conference of Friends of the Indian*, 80.

[24] *Ibid,* 86.

[25] *Proceedings of the Tenth Annual Meeting of the Lake Mohonk Conference of Friends of the Indian*, 80 (New York: Lake Mohonk Conference, 1892).

> "I want to tell you what I have seen during the last summer. I spent my vacation among the five civilized tribes, as they are called. It is within the memory of some of us here that these tribes were once wild blanket Indians in Georgia and Alabama; and the Rev. Mr. Worcester … was sent to teach them the Bible."[26]

Challenging "Christian Discovery": Politics

Overturning the segregationist "separate but equal" doctrine shows it can be done. But hard as it was, it was simpler than challenging "Christian Discovery." The challenge to segregation posed the question whether to integrate races within a single political entity; the challenge to Christian Discovery poses the question whether that political entity ought to exist.

We can see this by comparing two cases, *Brown v. Board of Education* and *Tee-Hit-Ton v. United States*,[27] decided a year apart, 1954 and 1955. *Brown*, as almost everyone knows, overturned "separate but equal"; *Tee-Hit-Ton*, which almost no one knows, affirmed Christian Discovery.

Brown was in large part an artifact of US rivalry with the Soviet Union for the allegiance of the Third World; *Tee-Hit-Ton* was an artifact in another dimension: the centuries-long Christian European war to own the world.

In *Brown*, the US was on the side of the challenge. The Department of Justice *amicus* brief said:[28]

> "The color of a man's skin—like his religious beliefs, or his political attachments, or the country from which he or his ancestors came to the United States—does not diminish or alter his legal status….
>
> "It is in the context of the present world struggle between freedom and tyranny that the problem of racial discrimination must be viewed. The United States is trying to prove to the people of the world, of every nationality, race, and color, that a free democracy is the most civilized and most secure form of government yet devised by man….
>
> "The subordinate position occupied by Negroes in this country as a result of governmental discrimination . . . presents an unsolved problem for American democracy."

In *Tee-Hit-Ton*, the US was a party and opposed the Tee-Hit-Ton challenge that it held title to its ancestral homelands. The Department of Justice brief said: [29]

> "The Christian nations of Europe acquired jurisdiction over newly discovered lands by virtue of [fifteenth century] grants from the Popes, who claimed the power to grant to Christian monarchs the right to acquire territory in the possession of heathens and infidels. …
>
> "[It is] plain that the Indians retained only a right of occupancy through the grace of the sovereign….
>
> "Principles of natural law, and abstract justice, are appealed to by some, to show that the Indian tribes . . . ought . . . to be regarded as the owners of the . . . soil they occupy.

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[26] *Proceedings of the Third Annual Meeting of the Lake Mohonk Conference of Friends of the Indian*, 42 (New York: Lake Mohonk Conference, 1885).

[27] Tee-Hit-Ton Indians v. United States, 348 U.S. 272 (1955).

[28] Brief for the United States as Amicus Curiae, *Brown v. Board of Education*, Dec. 2, 1952, 1952 WL 82045, at 3-4, 6, 31 (Dec. 2, 1952).

[29] Brief for the United States, Tee-Hit-Ton Indians v. United States, Sept. 21, 1954, 1954 WL 72831, at 13, 24 (Sept. 21, 1954).

> [But] the fundamental principle, that the Indians had no rights, by virtue of their ancient possession, either of soil or sovereignty, has never been abandoned."

In *Brown*, the court overturned the "separate but equal" doctrine because it obstructed the quest of the United States to dominate international politics. In *Tee-Hit-Ton*, there was no comparable political pressure to abandon the doctrine of Christian Discovery. Indeed, a rejection of that doctrine would have threatened a core US geopolitical interest—the claim of ownership of the American landmass, with its many sites of strategically important industrial resources. Taken together, *Brown* and *Tee-Hit-Ton* demonstrate US legal history as part of a mission to dominate the world.

The agendas for civil rights law and federal anti-Indian law are different. Federal civil rights law emphasizes the equality of *individual persons as citizens of the United States*. Federal anti-Indian law denies the status of the Original Peoples as *sovereign political entities separate from the United States*.

Intriguingly, there were signs of anxiety among the *Tee-Hit-Ton* justices about admitting the doctrinal basis for that denial, even as they affirmed it.

Correspondence among the justices prior to the issuance of the *Tee-Hit-Ton* decision shows that they decided to avoid the US brief's explicit reliance on Christian Discovery doctrine, even as they upheld the US position. A memo circulated to the full bench one day before the decision was issued changed the wording of the crucial sentence: [30]

> "This position of the Indian has long been rationalized by the legal theory that discovery and conquest gave the conquerors sovereignty over and ownership of the lands thus obtained."

The sentence formerly read in opinion drafts:

> "This position of the Indian has long been rationalized by the legal theory that discovery and conquest by Christian nations gave these conquerors sovereignty over and ownership of the lands thus obtained."

In *Tee-Hit-Ton*, the court pointed the way to affirm US domination without mentioning the rationale. Two 21st century decisions exemplify this elision:

Justice Ruth Bader Ginsburg in City of Sherrill v. Oneida Nation, referred simply to "discovery." She wrote, "Under the 'doctrine of discovery,' . . . fee title to the lands occupied by Indians when the colonists arrived became vested in the sovereign—first the discovering European nation and later the original States and the United States." [31]

In 2020, in McGirt v. Oklahoma, Justice Neil Gorsuch relied on "Christian Discovery" doctrine without even using the word "discovery"; instead, he referred to the claim of domination as the "significant authority" of the United States "when it comes to tribal relations."[32]

The Ginsburg and Gorsuch examples show that "Christian Discovery" is not a matter of "liberal / conservative" differences. Observers who equate critique of the doctrine with

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[30] Peter P. d'Errico, *Federal Anti-Indian Law: The Legal Entrapment of Indigenous Peoples* 126-27 (2022). Special Collections Research Center, University of Kentucky, Stanley Reed Collection, Tee-Hit-Ton v. United States, 348 U.S. 272 (1955), Boxes 186–187.

[31] City of Sherrill, N.Y. v. Oneida Indian Nation of New York, 544 U.S. 197, 204 (2005).

[32] *McGirt v. Oklahoma,* 591 U.S. 894, 903 (2020).

'liberalism' are surprised to learn that Clarence Thomas is the only sitting justice who has questioned it. More than once. For example, dissenting in *Haaland v. Brackeen*: [33]

> "I have searched in vain for any constitutional basis for … a plenary power [over Indian tribes]. …
>
> "The history of the plenary power doctrine in Indian law shows that, from its inception, it has been a power in search of a constitutional basis….
>
> "[Regarding] the power to regulate 'Commerce' with tribes: Because the Constitution contains one Indian-specific power, there is simply no reason to think that there is some sort of free-floating, unlimited power over all things related to Indians. …
>
> "So where did the idea of a 'plenary power' over Indian affairs come from? As it turns out, little more than *ipse dixit*. The story begins with loose dicta from *Cherokee Nation* v. *Georgia*… [where Chief Justice John] Marshall …characterized ['Indian tribes'] as …'domestic dependent nations' whose 'relation to the United States resembles that of a ward to his guardian.' …At bottom, *Cherokee Nation*'s loose dicta cannot support a broader power over Indian affairs."

A *New Republic* staff writer, Matt Ford, chastised Thomas, saying, "Clarence Thomas Wants to Demolish Indian Law." Ford said:

> "Justice Clarence Thomas … thinks that the court should 'clarify' some of its most important Indian law and tribal sovereignty rulings—meaning that he thinks they should be overturned. Doing so would upend two centuries of federal-tribal relations and fundamentally reshape Native Americans' place in the American constitutional order." [34]

Ford clearly did not understand that "two centuries of federal-tribal relations" have developed as a system of domination based on a US claim of "ownership of the country by discovery." Ford was also not aware that the ground of Original Peoples' sovereignty exists *apart from* rather than *in* "the American constitutional order."

The most encouraging sign of doctrinal challenge in litigation is the Yakama Nation *amicus* brief in *Washington State v. Cougar Den*[35] that opened with a startling and powerful argument for overruling Christian Discovery doctrine, followed by a conventional Treaty-based argument. The brief said:

> "This doctrine of domination and dehumanization—Christian discovery—is not welcome within Yakama Territory, and should no longer be tolerated in United States law. …
>
> "We call on this Court to repudiate the doctrine of discovery, and in this case and all future cases involving our inherent sovereignty and Treaty-reserved rights, rely on the solemn promises made between the United States and the Yakama Nation…."

The court ruled in favor of the Yakama party but did not take up the task of repudiating the doctrine in all future cases. The brief is a landmark.

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[33] Haaland v. Brackeen, 599 U.S. 255, 335, 350, 357 (2023).

[34] Matt Ford, "Clarence Thomas Wants to Demolish Indian Law, The New Republic," *The New Republic,* June 23, 2023, available at https://newrepublic.com/article/173869/clarence-thomas-wants-demolish-indian-law.

[35] Brief of Amicus Curiae Confederated Tribes and Bands of the Yakama Nation in Support of Respondent, *Washington State Department of Licensing v. Cougar Den, Inc.*, 2018 WL 4739661, at 6, 13 (2018).

Most current litigation does not follow the Yakama example. Many cases, like those aimed at protecting Indigenous spiritual practices threatened by mining, acquiesce to the US claim of "title" to the lands involved and instead try to make do with the "trust" doctrine combined with ordinary US law (*e.g.*, "religious freedom," "environmental protection"). Olga Symeonoglou, an attorney at Cultural Heritage Partners focused on cultural heritage, indigenous rights, and repatriation, explained: [36]

> "Because the land-based religious practices of Indigenous peoples are tied to specific geographic locations, the destruction of those places means the customs, beliefs and religious rituals associated with those places will end forever."

Unfortunately, these high-profile cases, including about Thacker Pass[37] and Oak Flat[38], miss the opportunity to challenge the US claim that it owns the land. They could easily follow Yakama, presenting a combination of doctrinal challenge and conventional argument. That approach, whether it succeeded in court or not, would contribute to public discussions crucial to bringing about legal change.

Conclusion

It is important to understand that undoing the doctrine will not in itself repair the damage that its application caused. Indeed, there may be no way to undo all the effects of the history of "Christian Discovery" domination. Some effects are remediable (such as acknowledgment of land titles), but damage done at existential and spiritual levels by destruction of Native languages and demolition of kinship relations and Original organizations has greatly undercut the possibilities for repairing that damage.

Some people put their hope in a larger arena created by the United Nations 2007 Declaration on the Rights of Indigenous Peoples [39], especially after the success of enacting the Declaration in the face of years of concerted resistance by the US and its partners in the former English colonies. Their opposition started with the title of the document! They said there are no Indigenous Peoples remaining in the world, only Indigenous people, who have no group rights, being simply citizens of states.

The Declaration recognizes Indigenous Peoples' land rights in a number of clauses and the Permanent Forum on Indigenous Issues ("issues" being a tame word) has published strong critiques of the doctrine.[40]

Declaration Article 26 says:

> "Indigenous peoples have the right to the lands, territories and resources which they have traditionally owned, occupied or otherwise used or acquired. … States shall give legal recognition and protection to these lands, territories and resources."

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[36] Olga Symeonoglou, "Protecting Indigenous Sacred Places in the Quest for Energy Transition Materials," *Arizona Attorney*, July/August 2023.

[37] *Western Watersheds Project, et al. v. Washington, et al.*, No. 23-3872 (9th Cir. 2025), available at https://law.justia.com/cases/federal/appellate-courts/ca9/23-3872/23-3872-2025-02-11.html. See also *Protect Thacker Pass*, available at https://www.protectthackerpass.org/.

[38] Apache Stronghold v. United States, No. 21-15295 (9th Cir. 2024).

[39] Resolution adopted by the General Assembly on 13 September 2007, *United Nations Declaration on the Rights of Indigenous Peoples,* A/RES/61/295, U.N. Doc. A/RES/61/295 (2007), available at https://documents.un.org/doc/undoc/gen/n06/51207.pdf.

[40] *Preliminary Study of the Impact on Indigenous Peoples of the International Legal Construct Known as the Doctrine of Discovery*, U.N. Permanent Forum on Indigenous Issues, Ninth Session, U.N. Doc. E/C.19/2010/13 (2010), available at https://www.un.org/esa/socdev/unpfii/documents/E.C.19.2010.13%20EN.pdf.

But the UN is, after all, an organization of states; the Declaration does not escape this structure; though it says, "states shall," there is no enforcement mechanism. States do as they wish.

The crudest and most revealing example is President Barack Obama's announcement in January 2011 that he was reversing US opposition to the Declaration. But his "signing statement"[41] took specific exception to Article 32.2, which reads:

> "States shall consult and cooperate in good faith with the Indigenous peoples concerned through their own representative institutions in order to obtain their free and informed consent prior to the approval of any project affecting their lands or territories and other resources, particularly in connection with the development, utilization or exploitation of mineral, water or other resources."

The signing statement said:

> "[Regarding] the Declaration's provisions on free, prior and informed consent, … the United States understands [this] to call for a process of meaningful consultation with tribal leaders, but not necessarily the agreement of those leaders, before the actions addressed in those consultations are taken."

In Orwellian fashion, Obama overturned the meaning of "consent," which the *Oxford English Dictionary* says has meant "agreement" since at least the early 14th century.

To make matters worse, Obama had already in October 2010 issued a 2010 "Heritage Proclamation"[42] that used the standard anti-Indian law euphemisms:

> "From upholding the tribal sovereignty recognized and reaffirmed in our Constitution and laws to strengthening our unique nation-to-nation relationship, my Administration stands firm in fulfilling our Nation's commitments. …
>
> "As we celebrate the contributions and heritage of Native Americans during this month, we also recommit to supporting tribal self-determination…."

For more than 200 years, US policy and law regarding Original Peoples has been domination masked with mendacious rhetoric.

Where are we and where do we go next? These questions are where we started. My sense is that Original Peoples will continue to grapple with domination claims and mendacity in a worldwide struggle both metaphysical and physical as states and their corporate partners grasp for ever more "resources" to fuel themselves.

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[41] Announcement of U.S. Support for the United Nations Declaration on the Rights of Indigenous Peoples and Initiatives to Promote the Government-to-Government Relationship & Improve the Lives of Indigenous Peoples, U.S. Dep't of State, Dec. 16, 2010, available at https://2009-2017.state.gov/documents/organization/154782.pdf.

[42] *Presidential Proclamation--National Native American Heritage Month*, The White House Office of the Press Sec'y, Oct. 29, 2010, available at https://obamawhitehouse.archives.gov/the-press-office/2010/10/29/presidential-proclamation-national-native-american-heritage-month.